

In this week's פרשה of שופטים, we have the famous עדים זוממים of ענין. The entire world asks the question, if they were unsuccessful in what they were attempting to do, only then will we do פֶּאֶשֶׁר זָמָם. However, if it was already done, then we don't do anything to them. לְעִשְׂתָּם לוֹ פֶּאֶשֶׁר זָמָם, whether it's ממון or מיתה. The צדוקים, of course, didn't know how to learn, they only know תורה שבכתב. The צדוקים said, no, you do to them if they fulfilled their שקר עדות. How did they know that? Because the pasuk says נפש תחת נפש. The חכמים said to them, but it says לְעִשְׂתָּם לוֹ פֶּאֶשֶׁר זָמָם and they explain קיים - the brother still has to be here, the brother has to still be alive.

The ריטב"א asks a קשיא on this משנה: What do you mean אחיו is only if he's alive? We have plenty of places where אחיו includes when he's מת. Look in פרשת כי תצא. It says, וְיָקוּם עַל שֵׁם אָחִיו הַמֵּת, and it says לְהַקִּים לְאָחִיו שֵׁם בְּיִשְׂרָאֵל. It says the word אחיו many times, and it's in a situation where the brother already passed away.

The רש"י says an interesting תירוץ. If it's a relative, a blood relative from one's father or one's mother, that's called אחיו - whether he's alive or he's dead. However, when it says לְעִשְׂתָּם לוֹ פֶּאֶשֶׁר זָמָם לְאָחִיו, it's not a blood relative. It's a member of כלל ישראל. We're all considered brothers. He's not an אחיו in blood, but he's an אחיו במצוות. This brother is only a brother when he's alive, when he's חייב במצוות. Once he's dead, he's חפשי מן המצוות, and is not considered a brother. לְעִשְׂתָּם לוֹ must therefore refer to a living אחיו במצוות. That's why the צדוקים were wrong, because they said he's still considered your brother even if he's dead, but that's only a brother of flesh and blood, but not if it's not a brother in מצוות.

Once we're dead, we're חפשי מן המצוות because you cannot accomplish after you're dead. Think about that. We are alive. We have a chance to do מצוות while we are alive. Grab them, man. Grab them. חאפ. אריין. Don't think it's forever. It is not forever, even though I may be a little bit older than you. It's not forever. Even younger people should start remembering and learning that. When you have an opportunity to do a מצוה, grab it, because that is חיות.

Parenthetically, there is a way that a person really may accomplish after death. How? If he leaves behind זרע חי וקיים, he leaves behind ברעא דאבוה, who continue to do מצוות in the זכות of their parents. I have the tremendous מנהג which I picked up many years ago, that before I start davening every day, I say לעילוי נשמת all my עלטערן who passed away, my parents, the Zeidys and the Bobbis. I say I want this davening that I'm doing now to be a זכות and an עליה for their נשמה. So they get an עליה. So they are getting gifts. I'm sending them care packages every single day, besides the יארצייט and the תיקון השם. בעזרת השם, in the זכות of all these מצוות and all the תפילות and all the תהילים, may כלל ישראל have a במהרה.

